

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

TAURIAN WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. TANCREDO CONTREAS, Shield No. 18594,
Individually and in HIS Official Capacity and P.O.'S "JOHN DOE" #1-
5, Individually and in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 14, 2013

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

1. Michael A. Cardozo
Corporation Counsel of the
City of New York
New York, NY 10007

2. P.O. Tancredo Contreras
Shield No. 018594
41st Precinct
1035 Longwood Ave
Bronx, NY 10459

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CONTREAS, Shield No. 18594, Individually and in HIS
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COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Plaintiff TAURIAN WARING, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff TAURIAN WARING is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O, TANCREDO and P.O.s "JOHN DOE" #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about March 17, 2012 in the County of Bronx, City, and State of New York, plaintiff TAURIAN WARING was lawfully in the vicinity of 163rd Street and Kelly Street in Bronx, New York.

9. At the aforesaid time and place, NYPD officers suddenly accosted plaintiff and searched him, finding nothing unlawful.

10. Nevertheless, defendant officers placed plaintiff under arrest with his arms tightly behind his back.

11. At no time on March 17, 2012, did defendants possess probable cause to arrest plaintiff.

12. At no time on March 17, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

13. Thereafter, plaintiff was transported to a nearby police precinct, subjected to an invasive strip search and charged with Trespass.

14. At no time on March 17, 2012, did defendant trespass or behave unlawfully in any way.

15. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx District Attorney's Office.

16. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely state that plaintiff was an uninvited guest in 970 Kelly Street.

17. As a result of his unlawful arrest, plaintiff TAURIAN WARING spent approximately twenty-five (25) hours in police custody and has spent approximately fifteen (15) months making court appearances to date.

18. Upon information and belief, all charges will be terminated in plaintiff's favor.

19. As a result of the foregoing, plaintiff TAURIAN WARING sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "19" with the same force and effect as if fully set forth herein.

21. On or about May 22, 2012 and within ninety (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF

NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

22. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

23. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and a hearing is being scheduled.

24. This action was commenced on June 14, 2013, within one (1) year and ninety (90) days after the cause of action herein accrued.

25. Plaintiff has complied with all conditions precedent to maintaining the instant action.

26. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIFTH CLAIM FOR RELIEF FOR
ASSAULT**

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “26” with the same force and effect as if fully set forth herein.

28. Defendants’ aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

29. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF FOR
BATTERY**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “29” with the same force and effect as if fully set forth herein.

31. Defendant police officers touched plaintiff in a harmful and offensive manner.

32. Defendant police officers did so without privilege or consent from plaintiff.

33. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF FOR
FALSE ARREST**

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “33” with the same force and effect as is fully set forth herein.

35. Defendant police officers arrested plaintiff in the absence of probable cause and without a warrant.

36. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff’s rights.

**FORTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. Defendants misrepresented and falsified evidence before the District Attorney.

39. Defendants did not make a complete and full statement of facts to the District Attorney.

40. Defendants withheld exculpatory evidence from the District Attorney.

41. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

42. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

43. Defendants acted with malice in initiating criminal proceedings against plaintiff.

44. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

45. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

46. Defendants acted with malice in continuing criminal proceedings against plaintiff.

47. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

48. Notwithstanding the perjurious and fraudulent conduct of defendants, upon information and belief, all charges against plaintiff will be terminated in his favor.

49. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF FOR
FALSE IMPRISONMENT**

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for their safety, he was humiliated and he was subjected to handcuffing, and other physical restraints.

52. Plaintiff was conscious of said confinement and did not consent to same.

53. The confinement of plaintiff was without probable cause and was not otherwise privileged.

54. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SIXTH CLAIM FOR RELIEF FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

57. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

58. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

59. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

60. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

63. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

64. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

65. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

FEDERAL CLAIMS

EIGHTH CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “65” with the same force and effect as if fully set forth herein.

67. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

68. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

69. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

70. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

NINTH CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "71" with the same force and effect as if fully set forth herein.

73. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

74. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

TENTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "74" with the same force and effect as if fully set forth herein.

76. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

77. Defendants did not make a complete and full statement of facts to the District Attorney.

78. Defendants withheld exculpatory evidence from the District Attorney.

79. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

80. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

81. Defendants acted with malice in initiating criminal proceedings against plaintiff.

82. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

83. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

84. Defendants acted with malice in continuing criminal proceedings against plaintiff.

85. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

86. Upon information and belief all charges against plaintiff will be terminated in his favor.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**ELEVENTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

88. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "87" as if the same were more fully set forth at length herein.

89. Defendants created false evidence against plaintiff.

90. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office.

91. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

92. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 14, 2013

BY: _____
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115
jfitch@cohenfitch.com
gcohen@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff TAURIAN WARING in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 June 14, 2013


Gerald Cohen

Index No.
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Defendants.

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY

SUITE 1800

NEW YORK, NEW YORK 10279

(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at

on
Dated:

, at

M.

ATTORNEY FOR

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY, SUITE 1800

NEW YORK, N.Y. 10279

(212) 374-9115